

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DEONTAE COOPER,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. CARLOS RIVERO,
Shield No. 31057 (Tax Id. No.951153), Individually
and in his Official Capacity, and POLICE OFFICERS
“JOHN DOE” #1-10, Individually and in their Official
Capacity (the name John Doe being fictitious, as the
true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Kings County
as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs’ attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
November 11, 2020

COHEN & FITCH LLP
Attorneys for Plaintiff
110 E. 59th St, Suite 3200
New York, N.Y. 10022
(212) 374-9115

TO:

JAMES E. JOHNSON
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

P.O. CARLOS RIVERO, Shield No. 31057 (Tax Id. No.951153)
Narcotics Boro Brooklyn South
c/o 1 Police Plaza, Room 110C
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DEONTAE COOPER,

Plaintiff,

-against-

VERIFIED COMPLAINT

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

THE CITY OF NEW YORK, P.O. CARLOS RIVERO, Shield No. 31057 (Tax Id. No.951153), Individually and in his Official Capacity, and POLICE OFFICERS “JOHN DOE” #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

Plaintiff DEONTAE COOPER by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully allege as follows:

FACTS

1. Plaintiff DEONTAE COOPER is an African-American male and has been at all relevant times a resident of Kings County in the State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned the individually named defendants, P.O. CARLOS RIVERO, Shield No. 31057 (Tax Id. No.951153) and POLICE OFFICERS “JOHN DOE” #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about May 2, 2019, in the County of Kings, City, and State of New York, plaintiff DEONTAE COOPER was lawfully present in the vicinity of 537 Snediker Ave. Brooklyn, NY, visiting a friend.

9. At approximately 6:45 p.m., multiple police officers, including, upon information and belief, defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10, entered the above-mentioned location and pointed their guns at plaintiff and the other occupants therein.

10. In addition, said officers began yelling at plaintiff and the other occupants to put their hands up and get on the ground. Plaintiff complied and immediately got on the ground.

11. Immediately thereafter, defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10 placed plaintiff under arrest by handcuffing his arms tightly behind his back and then searched his person and effects. However, no contraband was recovered from plaintiff as a result of this search, nor did plaintiff have custody or control over any contraband.

12. At no time on May 2, 2019 , did defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10 possess probable cause and/or reasonable suspicion to search plaintiff’s person or effects nor did they obtain voluntary consent from him to do so.

13. At no time on May 2, 2019 , did defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff’s persons or effects.

14. At no time on May 2, 2019 , did defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10 possess probable cause to arrest plaintiff.

15. At no time on May 2, 2019 , did defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

16. At no time on May 2, 2019, did plaintiff possess any contraband and/or controlled substances, and/or marijuana, and/or stolen property, and/or drug paraphernalia, nor did plaintiff have custody and control over any contraband and/or controlled substances and/or marijuana and/or stolen property, and/or drug paraphernalia, nor did plaintiff commit any crimes or offenses or behave unlawfully in any way, nor was any evidence or contraband found on his person or in his effects.

17. Subsequently, defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10 picked plaintiff up and forcefully threw plaintiff onto a bed in a bedroom. Plaintiff

remained in said bedroom for approximately twenty (20) minutes before he was finally escorted downstairs.

18. Thereafter, plaintiff was lined up in a hallway and subjected to a second pat-down search. However, no contraband was recovered from plaintiff as a result of this search, nor did plaintiff have custody or control over any contraband.

19. Subsequently, plaintiff was detained in the hallway for approximately twenty (20) minutes before being escorted into another room. Plaintiff remained detained in this room for several hours.

20. Upon information and belief, the apartment where plaintiff was visiting was also searched.

21. Upon information and belief, the defendant police officers RIVERO and/or POLICE OFFICERS "JOHN DOE" #1-10, did not enter pursuant to a valid search warrant.

22. The defendant police officers RIVERO and/or POLICE OFFICERS "JOHN DOE" #1-10, did not provide a copy of said warrant to plaintiff or the occupants therein upon repeated requests.

23. Upon information and belief, the defendant police officers RIVERO and/or POLICE OFFICERS "JOHN DOE" #1-10, if they did possess a warrant, did not enter in a manner or at a time authorized in the warrant.

24. Upon information and belief, plaintiff was not listed or described as a suspect or target on any application for any warrant.

25. Thereafter, plaintiff was transported to a nearby police precinct where he was searched again, fingerprinted, photographed, confined against his will in a holding cell for several hours, and charged with crimes by defendants RIVERO and/or POLICE OFFICERS

“JOHN DOE” #1-10. Specifically, upon information and belief, plaintiff was charged with Grand Larceny, Criminal Possession of a Controlled Substance, Criminally Using Drug Paraphernalia, Criminal Possession of Stolen Property, and Unlawful Possession of Marijuana. However, at no time did plaintiff commit any of the aforementioned crimes and/or offenses nor possess any contraband or have custody or control over same.

26. After being detained at the aforementioned precinct for several hours plaintiff was transported to Central Booking where he was searched, subjected to a retina scan (a.k.a. an "eye scan"), photographed, moved from cell to cell, and further detained.

27. In connection with plaintiffs' arrest, defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Kings County District Attorney's Office. Thereafter, defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10 falsely stated, *inter alia*, that plaintiff was in possession of controlled substances, and/or marijuana, and/or drug paraphernalia, and/or stolen property.

28. As a result of the foregoing, plaintiff spent approximately nineteen (19) hours in custody before he was released when the Kings County District Attorney's Office declined to prosecute his arrest on or about May 3, 2019.

29. In addition, as a result of the foregoing, plaintiff missed approximately one (1) day of work, causing him to lose wages and suffered physical injury and pain to his back.

30. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, physical injuries, economic injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

FEDERAL CLAIMS

**FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

32. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

33. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

34. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

35. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

36. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

38. As a result of the aforesaid conduct by defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

39. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

40. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

41. Defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against the plaintiff.

42. Defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s Office – namely, the defendants falsely informed prosecutors *inter alia*, plaintiff was in possession of controlled substances, and/or marijuana, and/or drug paraphernalia, and/or stolen property.

43. Defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

44. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

45. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
UNLAWFUL SEARCH AND ENTRY UNDER 42 U.S.C. § 1983

46. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

47. As a result of the aforesaid conduct by defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10 plaintiff’s home and possessions were illegally and improperly entered without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

48. As a result of the aforesaid conduct by the defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff’s home was entered illegally at time not prescribed in the warrant, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

49. As a result of the aforesaid conduct by the defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was not provided a copy of said warrant upon his request, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

50. As a result of the aforesaid conduct by the defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal search and seizure pursuant to an invalid search warrant obtained with stale information, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

51. As a result of the aforesaid conduct by the defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal search and seizure pursuant to an invalid anticipatory search warrant for which probable cause was lacking, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

52. As a result of the aforesaid conduct by the defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal search and seizure pursuant to an invalid search warrant issued upon an affidavit containing false or recklessly inaccurate information and/or which omitted information upon which a judge would have concluded there was no probable cause for its issuance, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

53. As a result of the aforesaid conduct by defendants RIVERO and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff’s home and possessions were illegally and improperly

searched without any warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

54. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

55. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

56. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. executing search warrants and arresting any and all individuals in said premises regardless of individualized probable cause; and,
- D. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

57. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

58. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

59. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

60. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

61. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

62. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and

- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
November 11, 2020

BY: _____/S_____
ILYSSA FUCHS
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
110 E. 59th St., Suite 3200
New York, N.Y. 10022
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff DEONTAE COOPER in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
November 11, 2020

_____/S_____
ILYSSA S. FUCHS